

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
TANYA HICKS,

Plaintiff,

- against -

THE CITY OF NEW YORK and ASAD SARDAR,

Defendants.
-----X

Index No.

Plaintiff designates
New York County as
place of trial.

The basis of the
venue is the
location of occurrence.

S U M M O N S

Plaintiff resides at:
100 W. 139TH Street, (5)
New York, New York 10039

County of New York

To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after service is complete if this summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgement will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
April 23, 2018

SCHMELKIN ASSOCIATES, P.C.
Attorneys for Plaintiff
TANYA HICKS
Office & P.O. Address
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 227-8865

The City of New York, 100 Church Street, New York, N.Y. 10007
ASAD SARDAR, c/o 32nd Precinct, 250 W 135th Street, New York, New York

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X Index No.
TANYA HICKS,

Plaintiff,

- against -

VERIFIED COMPLAINT

THE CITY OF NEW YORK and ASAD SARDAR,

Defendants.

-----X

Plaintiff, **TANYA HICKS**, complaining of the defendants,
by her attorneys, SCHMELKIN ASSOCIATES, P.C., hereby sets forth
and alleges, upon information and belief, as follows:

PRELIMINARY STATEMENT

1. That, at all times hereinafter mentioned, and on
August 3, 2017, the plaintiff, **TANYA HICKS**, was and still is a
resident of the County of New York, City and State of New York.

2. That, at all times hereinafter mentioned, and on
August 3, 2017, the defendant, **THE CITY OF NEW YORK**, (hereinafter
referred to as "**THE CITY**") was and still is a domestic municipal
corporation, duly organized and existing under and by virtue of
the laws of the State of New York.

3. That, at all times hereinafter mentioned, and on
August 3, 2017, the defendant, **ASAD SARDAR**, (hereinafter referred
to as "**SARDAR**"), was and still is a resident of the City and
State of New York.

4. That, the plaintiff, **TANYA HICKS**, has complied

with all the conditions precedent to the commencement of the within action against the defendant, **THE CITY**; plaintiff's Notice of Claim was served on October 18, 2017, within ninety (90) days of the date that the within cause of action having been caused to accrue; that thirty (30) days have elapsed and the claim remains unpaid and unadjusted; that, the plaintiff, **TANYA HICKS**, testified at an oral examination pursuant to the General Municipal Law on March 12, 2018; and, that this action is being commenced herewith within one (1) year and ninety (90) days of the date that the within cause of action having been caused to accrue.

5. That, on August 3, 2017, the plaintiff, **TANYA HICKS**, was driving a motor vehicle on the northeast corner of Lenox Avenue and West 145th Street, in the County of New York, City and State of New York.

6. That, the plaintiff, **TANYA HICKS**, was thereafter approached by a police officer, and/or other agent, servant, and/or employee of the defendant and/or defendants herein.

7. That, the plaintiff, **TANYA HICKS**, was ordered out of her car, without justification and without reason, by the aforementioned police officer, and/or other agent, servant, and/or employee of the defendant and/or defendants herein.

8. That, the plaintiff, **TANYA HICKS**, was handcuffed, and thrown against her car by the aforementioned individual.

9. That, the plaintiff, **TANYA HICKS**, was arrested, and was not advised of the charges against her.

10. That, the plaintiff, **TANYA HICKS**, was taken by the aforementioned police officer, and/or other agents, servants, and/or employees of the defendant and/or defendants to the 32nd Precinct.

11. That, while at the 32nd Precinct, the plaintiff, **TANYA HICKS**, was caused to be fingerprinted and photographed by the aforementioned police officer, and/or other agents, servants, and/or employees of the defendant and/or defendants herein.

12. That, the plaintiff, **TANYA HICKS**, was placed in a cell for a long and unreasonable period of time, by the defendant, and/or their agents, servants, and/or employees, and was denied food, and denied opportunity to make a telephone call.

13. That, the plaintiff, **TANYA HICKS**, was thereafter taken by the aforementioned defendant and/or defendants, their agents, servants, and/or employees, to Central Booking, whereby again she was denied food.

14. That, the plaintiff, **TANYA HICKS**, remained in a cell at Central Booking for a long and unreasonable period of time.

15. The plaintiff, **TANYA HICKS** , while at Central Booking, was stripped searched for no reason and without probable cause.

16. The plaintiff, **TANYA HICKS** , was seen by a judge.

17. The plaintiff, **TANYA HICKS** , was injured

as a result of the foregoing.

18. The plaintiff, **TANYA HICKS** , was caused to go to Criminal Court on several occasions.

19. All charges against the plaintiff, **TANYA HICKS** were ultimately dismissed on September 20, 2017.

AS AND FOR A FIRST CAUSE OF ACTION

20. That, on August 3, 2017, the plaintiff, **TANYA HICKS**, was assaulted/battered by the defendant, and/or defendants by and through their agents, servants and/or employees.

21. That, the plaintiff, **TANYA HICKS** , was assaulted/battered without justification and without cause and without excuse.

22. That, the assault/battery took place on the northeast corner of Lenox Avenue and West 145th Street, in the County of New York, City and State of New York, and other locations wherein the plaintiff, **TANYA HICKS** was held against her will by the defendant and/or defendants, their agents, servants and/or employees.

23. That, at all times hereinafter mentioned and on August 3, 2017, and for sometime prior thereto, defendant, **SARDAR**, was a New York City police officer, and/or agent servant and/or employee of the City, working in the scope and course of his employment as a New York City Police Officer, and was employed by the defendant, **THE CITY**.

24. That, the aforementioned assault and battery of the

plaintiff, **TANYA HICKS** , was carried out by police officers and/or other servants, agents and/or employees of the defendant, and/or defendants, while working within the scope and course of the employment with the defendant **THE CITY**.

25. That, by reason of the foregoing, the plaintiff, **TANYA HICKS**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue her usual and regular activities; and, upon information and belief, her injuries are permanent in nature and effect.

26. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

27. That, by reason of the foregoing, the plaintiff, **TANYA HICKS**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A SECOND CAUSE OF ACTION

28. That, the plaintiff, **TANYA HICKS**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 27 with the same force and effect as if hereinafter more fully set forth at length herein.

29. That, all of the aforementioned acts, committed by police officers, servants, and/or other employees of the defendant, **THE CITY**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

30. That the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants and/or other employees, who were employed by the defendant, **THE CITY**.

31. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **SARDAR** were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

32. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **SARDAR**, who was employed by the defendant, **THE CITY**.

33. That, by reason of the foregoing, the plaintiff, **TANYA HICKS** , was injured; was rendered sick, sore, lame and

disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue her usual and regular activities; and, upon information and belief, her injuries are permanent in nature and effect.

34. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

35. That, by reason of the foregoing, the plaintiff, **TANYA HICKS** has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A THIRD CAUSE OF ACTION

36. That the plaintiff, **TANYA HICKS**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 35 with the same force and effect as if hereinafter more fully set forth at length herein.

37. That, on August 3, 2017, the plaintiff, **TANYA HICKS**, was caused to be falsely arrested and falsely imprisoned without probable cause.

38. That, the plaintiff, **TANYA HICKS**, was arrested without an arrest warrant.

39. That, the false arrest/false imprisonment took place on the northeast corner of Lenox Avenue and West 145th

Street, in the County of New York, City and State of New York, and other locations and wherein the plaintiff, **TANYA HICKS**, was held against her will by the defendant and/or defendants, their agents, servants and/or employees.

40. That, the aforementioned false arrest and false imprisonment of the plaintiff, **TANYA HICKS**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, **THE CITY**.

41. That, the aforementioned false arrest and false imprisonment of the plaintiff, **TANYA HICKS**, was carried out by defendant, **SARDAR**, and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant **THE CITY**.

42. That, by reason of the foregoing, the plaintiff, **TANYA HICKS**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue her usual and regular activities; and, upon information and belief, her injuries are permanent in nature and effect.

43. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions as well as the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

44. That, by reason of the foregoing, the plaintiff,

TANYA HICKS, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A FOURTH CAUSE OF ACTION

45. The plaintiff, **TANYA HICKS**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 44, with the same force and effect as if hereinafter more fully set forth at length herein.

46. That, the aforementioned false arrest and false imprisonment of the plaintiff, **TANYA HICKS**, was caused due to a malicious prosecution of the plaintiff, **TANYA HICKS**, without cause, without reasonable cause, and without color of the law.

47. That, the arresting and investigating police, who were police officers, and/or other agents, servants or were other employees of the defendant, **THE CITY OF NEW YORK**, failed to make a proper and through investigation of the facts, failed to make proper inquiries resulting in the false arrest and false imprisonment of the plaintiff, **TANYA HICKS**, was maliciously prosecuted without probable cause, without reasonable cause, and without color of the law.

48. That, upon information and belief, all criminal charges against the plaintiff, **TANYA HICKS**, were ultimately dismissed on September 20, 2017, in the County of New York, City and State of New York, before Judge E. Koretz under docket number 2017NY041341.

49. That, by reason of the foregoing, the plaintiff, **TANYA HICKS**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue her usual and regular activities; and, upon information and belief, her injuries are permanent in nature and effect.

50. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions as well as the defendant and/or defendants, having acted in reckless disregard for the safety of others.

51. That, by reason of the foregoing, the plaintiff, **TANYA HICKS**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A FIFTH CAUSE OF ACTION

52. The plaintiff, **TANYA HICKS**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 51, with the same force and effect as if hereinafter more fully set forth at length herein.

53. That the plaintiff, **TANYA HICKS** did not commit any illegal act, nor did the individually named defendant, **SARDAR**, have reason to believe she committed an unlawful act, either before or at the time she was falsely arrested and imprisoned, assaulted and battered, excessive force was used against her; maliciously prosecuted and deprived of her

constitutional rights pursuant to the Fourth, Fifth and Fourteenth Amendments as set forth in the Constitution of the United States, particularly 42 U.S.C. §1983 and the Constitution of the State of New York.

54. That at all times hereinafter mentioned, the defendant, **SARDAR** was employed in his respective capacity by the defendant, **THE CITY** and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

55. Defendant, **SARDAR**, is being sued in his personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendant, **SARDAR** knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant, **THE CITY** has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

56. The unlawful and illegal conduct of the defendants, their agents, servants and/or employees and each of them, deprived plaintiff, **TANYA HICKS** of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York: The right of plaintiff, **TANYA**

HICKS, to be secure in her person and effects against unreasonable search and seizure under the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States; the right of plaintiff, **TANYA HICKS**, to be informed of the nature and cause of the accusation against her as secured to her under the Sixth and Fourteenth Amendments to the Constitution of the United States; and the right of plaintiff, **TANYA HICKS**, not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.

57. That the deprivation of plaintiff's Constitutional rights was the result of the unconstitutional acts of defendants while acting under color of state law and within the scope of their employ.

58. That the deprivation of plaintiff's Constitutional rights was the result of the defendant, **THE CITY's** custom and/or policy of arresting individuals without probable cause.

59. That the deprivation of plaintiff's Constitutional rights was the result of the defendant, **THE CITY's** custom and/or policy of arresting minorities without probable cause.

60. That the deprivation of plaintiff, **TANYA HICKS'** Constitutional Rights was the result of the defendant, **THE CITY's** custom and/or policy of failing to discipline officers for arresting individuals without probable cause.

61. That the said customs and/or policies may be

inferred from the existence of other similar Civil Rights actions that have been brought against the defendant, **THE CITY**.

62. That the detaining of plaintiff, **TANYA HICKS** without probable cause or justification was the result of customs and/or policies adopted by the defendant, **THE CITY**.

63. That the deprivation of plaintiff, **TANYA HICKS'** Constitutional rights was the result of the defendant, **SARDAR'S** arrest of the plaintiff, **TANYA HICKS**, without probable cause.

64. That the deprivation of plaintiff **TANYA HICKS'** Constitutional Rights was a result of the defendant, **THE CITY'S** custom and policy in failing to discipline officers for the use of excessive force.

65. That the deprivation of plaintiff, **TANYA HICKS'** Constitutional rights was the result of the defendant, **SARDAR'S** use of excessive force.

66. That the customs and/or policies adopted by the defendant, **THE CITY** exhibited a deliberate indifference to the Constitutional rights of plaintiff, **TANYA HICKS**.

67. That by reason of the allegations as set forth in all of the aforementioned causes of actions, including, but not limited to the plaintiff's false arrest, false imprisonment, assault and battery, malicious prosecution as well as prosecution due to the negligence of the defendant and/or defendants, in the negligent hiring, negligent retention, and negligent training of

its various employees and/or police officers, the plaintiff, **TANYA HICKS** was caused to have her civil rights as guaranteed under the U.S. Constitution, including, but not limited to the Fourth, Fifth and Fourteenth Amendments, violated by the defendant and/or defendants herein, as set forth under 42 U.S.C. Section 1983.

68. That, by reason of the foregoing, the plaintiff **TANYA HICKS** was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue her usual and regular activities; and upon information and belief, her injuries are permanent in nature and effect.

69. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

70. That, by reason of the foregoing, the plaintiff, **TANYA HICKS** , has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

WHEREFORE, plaintiff, **TANYA HICKS** , demands judgment against the defendants, on the First, Second, Third, Fourth and Fifth causes of actions in an amount in excess of the jurisdictional limits of all of the lower Courts of the State of New York; together with interest, as well as the costs,

disbursements and legal fees pursuant to 42 U.S.C. Section 1988,
of these causes of action.

Dated: New York, New York
April 23, 2018

Yours, etc.

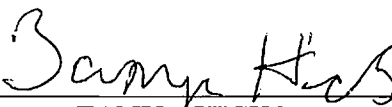
SCHMELKIN ASSOCIATES, P.C.
Attorneys for Plaintiff,
TANYA HICKS
Office & P.O. Address
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 227-8865

INDIVIDUAL VERIFICATION

STATE OF NEW YORK)
)
COUNTY OF NEW YORK) .SS:

TANYA HICKS, being duly sworn deposes and says:

I am the plaintiff in this action. I have read the foregoing COMPLAINT and know its contents and the same are true to my knowledge and belief except as to matters therein stated to be alleged on information and belief and as to those matters I believe it to be true.



TANYA HICKS

Sworn to before me this

23 day of April, 2018



Notary Public

NOTARY PUBLIC
New York State
Commission Expires 12/31/2018
2012

Index No.

Year 20

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

TANYA HICKS,

Plaintiff,

-against-

THE CITY OF NEW YORK and ASAD SARDAR,

~~Defendants~~

SUMMONS AND VERIFIED COMPLAINT

SCHMELKIN ASSOCIATES, P.C.

Attorneys for Plaintiff(s)

Tanya Hicks

Office and Post Office Address, Telephone

30 VESEY STREET, 4TH FLOOR

NEW YORK, N.Y. 10007

TEL: (212) 227-8865

Pursuant to 22 NYCRR 130-1.1-a, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, (1) the contentions contained in the annexed document are not frivolous and that (2) if the annexed document is an initiating pleading, (i) the matter was not obtained through illegal conduct, or that if it was, the attorney or other persons responsible for the illegal conduct are not participating in the matter or sharing in any fee earned therefrom and that (ii) if the matter involves potential claims for personal injury or wrongful death, the matter was not obtained in violation of 22 NYCRR 1200.41-a.

Dated: April 23, 2018

Signature

Print Signer's Name

JOEL SCHMELKIN

Service of a copy of the within

is hereby admitted.

Dated:

Attorney(s) for

PLEASE TAKE NOTICE

Check Applicable Box

NOTICE OF
ENTRYthat the within is a (certified) true copy of a
entered in the office of the clerk of the within-named Court on

20

NOTICE OF
SETTLEMENTthat an Order of which the within is a true copy will be presented for settlement to the
Hon. _____, one of the judges of the within-named Court,
at _____
on _____ 20 _____, at _____ M.

Dated:

SCHMELKIN ASSOCIATES, P.C.

Attorneys for Plaintiff(s)

To:

Office and Post Office Address, Telephone

30 VESEY STREET, 4TH FLOOR

NEW YORK N.Y. 10007